LIMITED PERSUASIVE SUPPORT FROM THE RELATED FEDERAL SCREENING ORDER

In the related federal action, the court stated at screening that, "[a]ccepting Mr. Newanforbi's alleged facts as true," the complaint supported plausible inferences of false imprisonment based on fabricated evidence and retaliatory denial of certification. (Newanforbi v. Serrato (N.D.Cal. June 29, 2026, No. 4:26-cv-05953-ASK) ECF No. 5, p. 4, lines 17–25.) The court found the complaint sufficient under 28 U.S.C. section 1915(e)(2), not proved on the merits. (Id., p. 5, lines 1–6.)

Petitioner cites that order only as persuasive support for the legal plausibility of the qualifying-crime theory. It does not establish fabrication, unlawful restraint, retaliatory motive, or entitlement to certification. Petitioner seeks neither issue preclusion nor a new retaliation claim. The surviving Count One requires competent evidence and this Court's own findings under its August 29 order; neither court's threshold ruling replaces that proof.

The federal order describes certification as discretionary. (ECF No. 5, p. 3, lines 24–27.) California's conditional "shall certify" requirement must instead be applied to the statutory predicates actually established here. (Pen. Code, § 679.10, subd. (g)(1).) Petitioner therefore relies on the federal order only for the limited point above, not to enlarge the surviving claim or bypass the required victimhood and helpfulness determinations.[1]

1. Penal Code § 679.10(g)(1), official text: https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.